

26NWCV01191 26NWCV01191

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-09-15

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Case Number: 26NWCV01191 Hearing Date: September 15, 2026 Dept: R

#16

ARMONIA RIGSBY V. SMILE BRANDS GROUP, INC., ET AL.

CASE

NO.: 26NWCV01191

HEARING:

Tuesday, September 15, 2026, at 9:30 AM

I.

Defendant PETER BOUTROS, DDS'S Motion to Compel
Plaintiff's Responses to Form Interrogatories, Set Two is GRANTED.

II.

Defendant PETER BOUTROS, DDS'S Motion to Compel
Plaintiff's Responses to Inspection Demands, Set Two is GRANTED.

III.

Defendant PETER BOUTROS, DDS'S Motion to Compel
Plaintiff's Responses to Special Interrogatories, Set Two is GRANTED.

IV.

Defendant PETER BOUTROS, DDS'S Motion to Deem
Requests for Admission, Set Two, as Admitted is GRANTED.

Moving

Party to give notice.

Background

On April 2, 2026, plaintiff Armonia Rigsby ("Plaintiff") filed a Complaint against defendants Smile Brands Group, Inc., Peter Boutros, DDS ("Defendant"), and DOES 1 through 20, inclusive (collectively, "Defendants").

On August 21, 2026, Plaintiff filed the operative First Amended Complaint against Defendants alleging the following causes of action: (1) Medical Negligence; (2) Breach of Fiduciary Duty; (3) Constructive Fraud; and (4) Lack of Informed Consent.

Defendant

moves to compel Plaintiff's responses to: (1) Form Interrogatories, Set Two; (2) Inspection Demands, Set Two; and (3) Special Interrogatories, Set Two. Defendant also moves to deem the truth of the matters set forth in Set Two of Defendant's Requests for Admission admitted as to Plaintiff.

Each of the four motions (collectively, the "Motions") of Defendant seeks monetary sanctions against Plaintiff in the sum of \$622.50.

As of

Thursday, September 10, 2026, as of 9:55 A.M., the Motions are unopposed. Any opposition was required to have been filed and served at least nine court days prior to the hearing. (Code Civ. Proc., § 1005, subd. (b).)

Discussion

Counsel

for Defendant indicates, inter alia, that on June 17, 2026, Defendant served the discovery at issue on counsel for Plaintiff. (Declarations of Joelle Foxwell ("Foxwell Decls.") Filed August 17, 2026 at ¶ 6, Ex. A.) On August 16, 2026, Plaintiff served unverified responses to the discovery at issue. (Id. ¶ 14.) A filing fee of \$60.00 was incurred for each motion. (Id. ¶ 15.) Counsel spent 1.5 hours preparing each of the Motions and anticipates spending one (1) hour drafting a reply and appearing at the hearing. (Id.) Counsel has an hourly rate of \$225.00 per hour. (Id.)

Initially,

the Court notes that the purported unverified responses of Plaintiff are not attached to the declarations of counsel in support of the respective motions.

However, given that the Motions were properly filed and served, and are unopposed, the Court finds that Plaintiff has conceded to the arguments raised therein.

“Contentions are waived when a party fails to support them with reasoned argument and citations to authority.” (Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.) Also, unverified responses “are tantamount to no responses at all.” (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.)

Based

on the foregoing, the Court GRANTS the Motions.

Plaintiff

is ORDERED to provide verified, complete, and code-compliant responses, without objections, to set two of Defendant’s form interrogatories, special interrogatories, and inspection demands within 10 days of the date of notice of this order.

The

Court GRANTS the request to deem the matters in set two of Defendant’s requests for admission as admitted.

The

Court GRANTS the request for monetary sanctions in the reasonable amount of \$510.00 (representing 0.5 hours of work on each of the Motions at the rate of \$225 per hour plus the \$60 filing fee).

The

Court ORDERS Plaintiff to pay total monetary sanctions of \$510.00 to Defendant’s counsel of record within 30 days of the date of notice of this order.